

Superior Court of Washington, County of _____

In re:

Petitioner/s (*person/s who started this case*):

And Respondent/s (*other party/parties*):

Case Number: _____

Order on Motion for Default

Clerk Code:

☐ ORDFL (Granted)

☐ ORDYMT (Denied)

Clerk's Action Required: 9

Order on Motion for Default

1. The court has considered the *Motion for Default* filed by (*name*): _____.

➤ **The Court Finds:**

2. Response

The other party, (*name*): _____, (*check one*):

☐ has **not** filed a *Response* to the *Petition*.

☐ has filed a *Response* to the *Petition*.

3. Notice about the Motion

The other party (*check one*):

☐ is entitled to notice of the *Motion* because they appeared or were served with the *Summons* and *Petition* more than 1 year ago. (*Check one*):

☐ Notice was given. The other party was served with the *Motion for Default* and notice of the hearing on (*date*): _____.

☐ Notice was not given. The *Motion* should be denied.

☐ is **not** entitled to notice of the *Motion for Default* because they have not filed a *Notice of Appearance*, have not appeared in this case in any other way, AND were served with the *Summons* and *Petition* less than 1 year ago.

☐ Notice was given even though it was not required. The other party was served with the *Motion for Default* and *Notice of the Hearing* on (*date*): _____.

4. Service of Summons and Petition

- ☐ The other party was properly served on (date): _____ with a *Summons* and *Petition* for this case and any other documents listed in the proof of service filed with the court.
- ☐ Valid proof of service has **not** been filed.

5. Timing and Type of Service

- ☐ The other party was served with the *Summons* and *Petition* by (check one):
- ☐ personal service in Washington State, at least 21 days ago.
 - ☐ personal service outside of Washington State, at least 61 days ago, because service could not be made within Washington State.
 - ☐ personal service in a jail, detention, or prison facility, at least 61 days ago.
 - ☐ mail, at least 91 days ago.
 - ☐ publication, at least 61 days ago.
 - ☐ **For a *Petition to Modify Child Support Order* only:**
 - ☐ by mail in Washington State. Service was effective at least 21 days ago.
 - ☐ by mail outside of Washington State. Service was effective at least 61 days ago.
 - ☐ Does not apply. No valid proof of service was filed.

6. Correct Court (venue and jurisdiction)

- ☐ A Washington court can decide this case because it has jurisdiction over the case and the parties. This case should be heard in this county court (venue is proper).
- ☐ Other (specify): _____

7. Active-duty Military

(The **federal** Servicemembers Civil Relief Act covers:

- Army, Navy, Air Force, Marine Corps, and Coast Guard members on active duty;
- National Guard or Reserve members under a call to active service for more than 30 days in a row; and
- commissioned corps of the Public Health Service and NOAA.

The **state** Service Members' Civil Relief Act covers those service members listed above who are either stationed in or residents of Washington state, and their dependents, except for the commissioned corps of the Public Health Service and NOAA.)

- ☐ The other party is **not** covered by the state or federal Servicemembers Civil Relief Act.
- ☐ The other party **is covered** by the state or federal Servicemembers Civil Relief Act. They (check one):
- ☐ may be defaulted because:
 - they are represented by a lawyer in this case, AND
 - they have not filed a Response, AND
 - the court has not granted a stay (or any stay previously granted has ended).
 - ☐ may **not** be defaulted at this time.

[] The court does not have enough information to find whether the other party is covered by the state or federal Servicemembers Civil Relief Act.

[] **Denied.** The other party must still be given copies of documents filed and notice of hearings scheduled in this case.

Sign here

Print name (and WSBA No., if lawyer)